

Our ref: PID-2022-100021

16 September 2022

Dr Richard McLean
By email: richarddrawsstuff@gmail.com

Dear Dr McLean

Notification of decision to not allocate your disclosure

I refer to your disclosure to our Office received 11 August 2022.

My assessment of your disclosure

I have finalised my assessment under section 26 of the *Public Interest Disclosure Act 2013* (PID Act) of the information you provided to our Office.

It might be helpful to you if I first explain what constitutes a PID. Under the PID Act three criteria must be met:

1. The discloser is a public official as defined under section 69 of the PID Act.
2. The disclosure was made to an authorised internal recipient as defined under section 34 of the PID Act.
3. The information tends to show, or the discloser believes on reasonable grounds that the information tends to show, one or more instances of disclosable conduct (disclosable conduct is detailed in section 29 of the PID Act).

Based on the information provided, I am unable to progress this matter as an internal public interest disclosure for the following reasons.

Authorised internal recipient

The Ombudsman's Office is not an authorised internal recipient under section 34 of the PID Act. I have reached this decision as I am not satisfied that there are reasonable grounds for you to believe it would be appropriate for the disclosure to be investigated by our Office.

Disclosable conduct

It was not clear to me what Commonwealth agency you were making a disclosure complaint about, or what disclosable conduct you were alleging, and there do not appear to be reasonable grounds for you to believe that the information tends to show one or more instances of disclosable conduct.

A public interest disclosure must concern the conduct of a Commonwealth Government agency (which includes people belonging to the agency and its contracted service providers).

The PID Act does not apply to the alleged conduct of state agencies and private entities, which means that any claims you have made about these types of bodies cannot be progressed under the PID scheme.

Possible next steps

Possible alternative avenues

Although I have determined that your matter cannot be progressed as a public interest disclosure under the PID Act, you may wish to raise your concerns with other agencies having oversight of the various matters you have raised. Further information about options that may be available to you is available at: [Other complaint-handling services - Commonwealth Ombudsman](#).

You may also wish to raise your concerns about privacy breaches with the Office of the Australian Information Commissioner (OAIC). Complaints may be made to the OAIC via the following link: <https://www.oaic.gov.au/privacy/privacy-complaints/>.

Contacting the agencies directly

It is open to you to raise your concerns as a complaint or a disclosure directly with the agencies involved. If you approach these agencies, they will conduct their own assessment of the information you provide. The contact details for each of the agencies are available on their respective websites.

Seeking a reconsideration

If you are dissatisfied with my decision you can request that I reconsider it. You can do this by providing the reasons why you disagree with my decision, in writing, within **seven days** of the date you receive this letter. In the event that I do not change my decision, it would be open to you to seek an independent review by an officer from another team in the Ombudsman's Office. Information about this process can be found here:

<https://www.ombudsman.gov.au/Our-responsibilities/complaints-about-us>

If you have any questions regarding the information in this letter I can be contacted by return email (PID@ombudsman.gov.au) or on 1300 362 072.

Yours sincerely

Judi
Authorised Officer
PID and Major Investigations Team
Complaints Management and Education Branch
Commonwealth Ombudsman

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